

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

STATE OF OHIO, ex rel. DAVE YOST,	:	Case No. 20IN06-0149
Plaintiff	:	Judge Richard D. Wetzel
-vs-	:	
THE LANDINGS PROPERTY	:	
ASSOCIATION, INC., ET AL.	:	
Defendants.	:	

SIXTH INTERIM REPORT OF RECEIVER

Now comes Jack Harris of Intercept Management Corp., the court-appointed receiver for the Defendant The Landings Property Owners Association, Inc. (“Receiver”), by and through counsel, and files this *Sixth Interim Report of Receiver* with the Court. The Receiver reports as follows:

1. In the Fifth Interim Report of Receiver, the Receiver detailed three alternatives to permanently cure the condition of the existing dam structure which is the basis of this action.
2. Since that time, AK Hydro has provided preliminary cost estimates for each of the three alternatives. Based on the Receiver’s review of same with the engineers, there is a clear path forward in the Receiver’s judgment.
3. Alternative 1 maintains the Class I structure of the dam which would continue to subject to ODNR oversight and regulation. This represents by far the most expensive proposition of the three alternatives (\$1,099,750.00), and with it would come significant maintenance expenses

going forward for which the Property Owners Association (and potentially other residents) would have to bear.

4. The cost of same would be significantly greater than the ARPA funds on hand, which would necessitate obtaining long term financing to pay for the balance of the project – the debt service of which would become the responsibility of the residents and the Property Owners Association in some form or fashion.

5. Alternative 2 would de-regulate the dam, reducing its height and limiting the maximum storage volume to 15 acre-feet, and involve a single pool. The floor of the pool would be lowered.

6. The cost for Alternative 2 would be just \$303,525.00 which is well under the amount of the ARPA funds on hand for the project. However, the ongoing maintenance costs would be greater than those of Alternative 3, mostly associated with mowing and care for what would often be a marshy area surrounding the pool. These costs again would be the responsibility of the Property Owners Association and/or the homeowners.

7. The third alternative reviewed calls for two pools and a causeway between them. The lower pool would be confined by the dam embankment, with the upper pool established by the new causeway. The estimated cost would be \$701,525.00 which is less than the ARPA funds available.

8. Moreover, the ongoing maintenance costs would be less than the other two alternatives, and thus less of a burden upon those who must bear the expenses going forward.

9. The Receiver believes that even after considering administrative and other costs associated with the project over and above the estimate, there is a good chance that Alternative 3 could be completed for not more than the available ARPA funds.

10. It should be noted that if the ARPA funds are not exhausted in 2025 they would be forfeited. As such, electing to proceed under the lower-cost Alternative 2 would likely yield an overage that would have to be forfeited.

11. As with any construction project (and any alternative chosen), there is a reasonable chance for cost overruns with any of the alternative plans given. In that event, the funds to pay any such overage would have to be borrowed which will add to the expense of the homeowners going forward.

12. Further, according to AK Hydro, Alternative 3 provides equally strong protection against flooding to the affected properties as either of the other two alternatives.

13. Based on the foregoing, and after careful consideration, the Receiver believes that Alternative 3 represents the best option considering safety foremost, as well as the financial burdens on the community going into the future.

14. To that end, the Receiver expects to move the Court for authority to proceed with Alternative 3. However, prior to doing so, the Receiver intends to schedule a meeting for the homeowners and any interested parties in late August to provide further explanation of the alternatives and depth of the project.

15. In furtherance of moving the project forward, the Receiver (through Lawhon & Associates, Inc.) has completed and submitted a Pre-Construction Notification to the Army Corps of Engineers which details a scope of work which would cover not only Alternative 3, but Alternative 2 as well.

16. The question remaining is “*who will pay for the maintenance and other costs associated with the project*”? The Receiver is evaluating the options which include: (a) just the residents of Phase VII and VIII who are members of the Property Owners Association which owns

the dam; (b) all residents of the subdivision; or (c) all affected property owners who stand to benefit whether part of the subdivision or not.

17. In assessing those options the Receiver must consider both the equities involved as well as the attendant administrative expenses. For instance, charging other homeowners or affected landowners outside the community would likely include their joinder in the present action or a separate lawsuit in order to establish jurisdiction over those persons. However, ultimately any decisions relative to funding will need to be approved by this Court.

18. Copies of each of the alternative estimates as well as the Pre-Construction notification have been uploaded to a share file accessible to any party to this matter and the Court.

Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on July 24, 2025, a copy of the foregoing *Sixth Interim Report of Receiver* was submitted to the Court electronically and served upon the following:

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